



SPONSOR: Sen. Hoffner & Rep. Carson

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 184

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO SERVICE OF PROCESS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1: Amend Chapter 31, Title 10 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3115. Service of process on a correctional officer.

4 (a) As long as a correctional officer remains employed by the State, service of process on a correctional officer, for
5 civil actions against the correctional officer arising out of their role as a correctional officer, must be made by leaving a
6 copy of the summons and complaint at that correctional officer's regular place of business with a person over the age of 18.

7 (b) Once a correctional officer is no longer employed by the State, service of process on a correctional officer, for
8 civil actions against the correctional officer arising out of their role as a correctional officer, must be made in accordance
9 with the applicable statutes and court rules for service of process.

10 (c) When service of a process on a correctional officer is made under this section, there shall be no service of
11 process on the correctional officer at their home and their home address must not be listed on any praecipe or similar
12 document filed with a court of this State.

13 (d) Nothing in this section shall be construed to limit or supersede the requirements of § 3103(c) of this title when
14 it would otherwise apply.

SYNOPSIS

This Act creates the legal framework for serving a correctional officer when they are employed by the State and when they are no longer employed by the State.

Author: Senator Hoffner